EU court rejects Poland's bid to overturn 7 major climate laws

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By Bartosz Brzeziński · Nov 12, 2026, 12:25 PM · View in your browser

Poland failed to overturn seven major European Union climate laws Thursday, with the bloc's top court rejecting challenges to measures including the 2035 target for zero-emission cars and carbon pricing for heating and transport.

The rulings by the Court of Justice of the EU uphold key parts of the EU's Green Deal and bring to a close a legal campaign launched by Poland's previous nationalist Law and Justice (PiS) government. Prime Minister Donald Tusk's pro-EU administration kept the campaign alive by deciding not to withdraw the lawsuits.

Poland argued that the laws would fundamentally reshape its coal-dependent energy system and therefore required unanimous approval by EU governments, effectively giving Poland a veto.

The court rejected that argument, ruling that the measures could be adopted by a qualified majority of member countries. The judges also dismissed challenges to the bloc's carbon border tax, energy efficiency rules and national emissions reduction targets.

Six lawsuits were filed in July and August 2023, while PiS was in power. The seventh was lodged on Dec. 14, a day after Tusk took office with a promise to repair Warsaw's relations with Brussels. His government reviewed the cases but decided not to withdraw them .

The court's decisions are final, but Tusk's Poland is still among the countries pushing to weaken parts of the EU's climate legislation , including by seeking to delay the new carbon market for heating and transport, known as ETS2.

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